

cmh

Date: 9/3/19

RESOLUTION NO. _____

Entitled: A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE WYOMING WATER DEVELOPMENT COMMISSION FOR GRANT FUNDING FOR THE NORTH CITY ZONE IMPROVEMENTS PROJECT IN THE AMOUNT OF \$8,040,000 AND AUTHORIZING THE MAYOR, THE CITY CLERK AND THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO EXECUTE THE APPLICATION AND ALL RELATED DOCUMENTS.

WHEREAS, Wyoming Statute 15-7-401, provides for a Board of Public Utilities (BOARD) to manage, operate, maintain and control municipal waterworks, sanitary sewer system and sewage disposal plants; and

WHEREAS, Cheyenne City Code, Section 2.68.010, established such a BOARD to have exclusive authority to manage, operate, maintain and control the Cheyenne Municipal Waterworks, Sanitary Sewage System and Sewage Disposal Plants of the City and to make all rules and regulations necessary for the safe, economical and efficient operation and maintenance of the above facilities; and

WHEREAS, the 2013 Water and Wastewater Master Plan recommends the replacement of the Round Top Tank and EPA has required the existing tank must be removed from service by 2024; and

WHEREAS, the existing Buffalo Ridge Pump Station needs significant improvements and does not provide adequate redundancy; and

WHEREAS, the BOARD desires to pursue the North City Zone Improvements to replace the existing Round Top Tank, Buffalo Ridge Tank, the Buffalo Ridge Pump Station with new a 3 million gallon elevation storage tank adjacent to the existing Buffalo Ridge Tank, and related piping; and

WHEREAS, the PROJECT cost estimate for engineering, construction, and other administrative costs is \$12,000,000, which includes engineering services, easements, construction and miscellaneous costs; and

WHEREAS, the PROJECT meets the criteria and is eligible for consideration of grant funding from the Wyoming Water Development Commission (WWDC) Level III Construction Account in the amount of \$8,040,000, sixty seven percent (67%); and

WHEREAS, the BOARD and the Governing Body of the City of Cheyenne will submit an application to the Wyoming State Loan and Investment Board for a \$3,960,000.00, thirty three percent (33%), loan from the Wyoming Drinking Water State Revolving Fund; and

WHEREAS, the BOARD recognizes that the PROJECT is necessary and that it is essential to maintain adequate level of service to the northern portion of the City Pressure Zone.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, that an application be submitted to the Wyoming Water Development Commission for a Level III Construction Account grant funding in the amount of \$8,040,000 for the North City Zone Improvements Project; and

BE IT FURTHER RESOLVED, that the Mayor, the City Clerk, and the Director of the Board of Public Utilities are hereby designated as the authorized representatives of the City of Cheyenne to act on behalf of the City of Cheyenne in all matters related to this application and related documents, including any amendments to the Project Agreement.

PRESENTED, READ AND ADOPTED this ____ day of _____, 2019.

CITY OF CHEYENNE

BY:

Marian J. Orr, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

[https://cheyennebopu-my.sharepoint.com/personal/fstrong_cheyennebopu_org/Documents/Shared with Everyone/Distribution/North City Zone Study/Funding/NorthCityImpCityResolution.docx](https://cheyennebopu-my.sharepoint.com/personal/fstrong_cheyennebopu_org/Documents/Shared%20with%20Everyone/Distribution/North%20City%20Zone%20Study/Funding/NorthCityImpCityResolution.docx)

Approved as to
form only:

CPR

Date: *8-26-19*

BOPU RESOLUTION NO. 2019-09

Entitled: A RESOLUTION AUTHORIZING SUBMISSION OF AN APPLICATION TO THE WYOMING WATER DEVELOPMENT COMMISSION FOR GRANT FUNDING FOR THE NORTH CITY ZONE IMPROVEMENTS PROJECT IN THE AMOUNT OF \$8,040,000 AND AUTHORIZING THE DIRECTOR OF THE BOARD OF PUBLIC UTILITIES TO EXECUTE THE APPLICATION AND ALL RELATED DOCUMENTS.

WHEREAS, Wyoming Statute 15-7-401, provides for a Board of Public Utilities (BOARD) to manage, operate, maintain and control municipal waterworks, sanitary sewer system and sewage disposal plants; and

WHEREAS, Cheyenne City Code, Section 2.68.010, established such a BOARD to have exclusive authority to manage, operate, maintain and control the Cheyenne Municipal Waterworks, Sanitary Sewage System and Sewage Disposal Plants of the City and to make all rules and regulations necessary for the safe, economical and efficient operation and maintenance of the above facilities; and

WHEREAS, the 2013 Water and Wastewater Master Plan recommends the replacement of the Round Top Tank and EPA has required the existing tank must be removed from service by 2024; and

WHEREAS, the existing Buffalo Ridge Pump Station needs significant improvements and does not provide adequate redundancy; and

WHEREAS, the BOARD desires to pursue the North City Zone Improvements to replace the existing Round Top Tank, Buffalo Ridge Tank, the Buffalo Ridge Pump Station with new a 3 million gallon elevation storage tank adjacent to the existing Buffalo Ridge Tank, and related piping; and

WHEREAS, the PROJECT cost estimate for engineering, construction, and other administrative costs is \$12,000,000.00, which includes engineering services, easements, construction and miscellaneous costs; and

WHEREAS, the PROJECT meets the criteria and is eligible for consideration of grant funding from the Wyoming Water Development Commission (WWDC) Level III Construction Account in the amount of \$8,040,000, sixty seven percent (67%); and

WHEREAS, the BOARD will submit an application to the Wyoming State Loan and Investment Board for a \$3,960,000.00, thirty three percent (33%), loan from the Wyoming Drinking Water State Revolving Fund; and

WHEREAS, the BOARD recognizes that the PROJECT is necessary and that it is essential to maintain adequate level of service to the northern portion of the City Pressure Zone.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, that an application be submitted to the Wyoming Water Development Commission for a Level III Construction Account grant funding in the amount of \$8,040,000 for the North City Zone Improvements Project; and

BE IT FURTHER RESOLVED, that the Director of the Board of Public Utilities is hereby designated as the authorized representatives of the City of Cheyenne to act on behalf of the City of Cheyenne in all matters related to this application and related documents, including any amendments to the Project Agreement.

PRESENTED, READ AND ADOPTED this 14th day of August, 2019.

BOARD OF PUBLIC UTILITIES
BY:

Mary B. Guthrie
Mary B. Guthrie, President

(SEAL)

ATTEST:


Matthew Pope, Secretary

[https://cheyennebopu-my.sharepoint.com/personal/fstrong_cheyennebopu_org/Documents/Shared with Everyone/Distribution/North City Zone Study/Funding/NorthCityImpCityResolution.docx](https://cheyennebopu-my.sharepoint.com/personal/fstrong_cheyennebopu_org/Documents/Shared%20with%20Everyone/Distribution/North%20City%20Zone%20Study/Funding/NorthCityImpCityResolution.docx)